



Barrow CE Primary School

Children with health needs who cannot attend school policy

LET YOUR LIGHT SHINE

Spring 2025

Statement of intent

At Barrow CE Primary School, we want to empower our pupils to achieve their maximum potential in a safe, happy and creative environment. Our mission is to nurture each child as a unique individual and to develop each child through a holistic approach.

Barrow CE School aims to support the LA and ensure that all pupils who are unable to attend school due to medical needs, and who would not receive suitable education without such provision, continue to have access to as much education as their medical condition allows, to enable them to reach their full potential.

Due to the nature of their health needs, some pupils may be admitted to hospital or placed in alternative forms of education provision. We recognise that, whenever possible, pupils should receive their education within their school and the aim of the provision will be to reintegrate pupils back into school as soon as they are well enough.

We understand that we have a continuing role in a pupil's education whilst they are not attending the school and will work with the LA, healthcare partners and families to ensure that all pupils with medical needs receive the right level of support to enable them to maintain links with their education.

1. Legal framework

1.1. This policy has due regard to all relevant legislation and statutory guidance including, but not limited to, the following:

- Education Act 1996
- Equality Act 2010
- The GDPR and Data Protection Act 2018

- DfE (2013) 'Ensuring a good education for children who cannot attend school because of health needs'
- DfE (2015) 'Supporting pupils at school with medical conditions'

1.2. This policy operates in conjunction with the following school policies:

- Attendance Policy
- Safeguarding Policy
- Special Educational Needs and Disabilities (SEND) Policy

2. Local authority duties

The local authority (LA) must arrange suitable full-time education for children of compulsory school age who, because of illness, would not receive suitable education without such provision. The school has a duty to support the LA in doing so.

Privacy Notice for Governors and Volunteers

ST SCHOLASTICA'S CATHOLIC PRIMARY SCHOOL

~~St Scholastica's is committed to protecting the privacy and security of your personal information. This privacy notice describes how we collect and use personal information about you during and after your work relationship with us, in accordance with the UK General Data Protection Regulation (UK GDPR).~~

~~Following Brexit, Regulation (EU) 2016/679, General Data Protection Regulation (GDPR) is retained EU law and known as UK GDPR. The UK GDPR sits alongside an amended version of the Data Protection Act 2018 that relate to general personal data processing, powers of the Information Commissioner and sanctions and enforcement. The GDPR as it continues to apply in the EU is known as EU GDPR.~~

2.1.

2.2. The LA should:

- Provide such education as soon as it is clear that a pupil will be away from school for 15 days or more, whether consecutively or cumulatively. They should liaise with the appropriate medical professionals to ensure minimal delay in arranging appropriate provision for the pupil.
- Ensure the education pupils receive is of good quality, allows them to take appropriate qualifications, prevents them from falling behind their peers in school, and allows them to reintegrate successfully back into school as soon as possible.
- Address the needs of individual pupils in arranging provision.
- Have a named officer responsible for the education of pupils with additional health needs and ensure parents know who this is.

- Have a written, publicly accessible policy statement on their arrangements to comply with their legal duty towards children with additional health needs.
- Review the provision offered regularly to ensure that it continues to be appropriate for each pupil and that it provides suitable education.
- Give clear policies on the provision of education for children and young people under and over compulsory school age.

2.3. The LA should not:

- Have processes or policies in place which prevent a child from getting the right type of provision and a good education.
- Withhold or reduce the provision, or type of provision, for a child because of how much it will cost.
- Have policies based upon the percentage of time a pupil is able to attend school rather than whether the pupil is receiving a suitable education during that attendance.
- Have lists of health conditions which dictate whether or not they will arrange education for children or inflexible policies which result in children going without suitable full-time education (or as much education as their health condition allows them to participate in).

3. Definitions

3.1. Children who are unable to attend school as a result of their medical needs may include those with:

- Physical health issues.
- Physical injuries.
- Mental health problems, including anxiety issues.
- Emotional difficulties or school refusal.
- Progressive conditions.
- Terminal illnesses.
- Chronic illnesses.

3.2. Children who are unable to attend mainstream education for health reasons may attend any of the following:

- **Hospital school:** a special school within a hospital setting where education is provided to give continuity whilst the child is receiving treatment.
- **Home tuition:** many LAs have home tuition services that act as a communication channel between schools and pupils on occasions where pupils are too ill to attend school and are receiving specialist medical treatment.

- Medical PRUs: these are LA establishments that provide education for children unable to attend their registered school due to their medical needs.

4. Roles and responsibilities

4.1. The governing body is responsible for:

- Ensuring arrangements for pupils who cannot attend school as a result of their medical needs are in place and are effectively implemented.
- Ensuring the termly review of the arrangements made for pupils who cannot attend school due to their medical needs.
- Ensuring the roles and responsibilities of those involved in the arrangements to support the needs of pupils are clear and understood by all.
- Ensuring robust systems are in place for dealing with health emergencies and critical incidents, for both on- and off-site activities.
- Ensuring staff with responsibility for supporting pupils with additional health needs are appropriately trained.
- Approving and reviewing this policy on an annual basis.

4.2. The headteacher is responsible for:

- Working with the governing board to ensure compliance with the relevant statutory duties when supporting pupils with additional health needs.
- Working collaboratively with parents and other professionals to develop arrangements to meet the best interests of pupils.
- Ensuring the arrangements put in place to meet pupils' health needs are fully understood by all those involved and acted upon.
- Appointing a named member of staff who is responsible for pupils with additional health needs and liaises with parents, pupils, the LA, key workers and others involved in the pupil's care.
- Ensuring the support put in place focusses on and meets the needs of individual pupils.
- Arranging appropriate training for staff with responsibility for supporting pupils with additional health needs.
- Providing teachers who support pupils with additional health needs with suitable information relating to a pupil's health condition and the possible effect the condition and/or medication taken has on the pupil.
- Providing annual reports to the governing board on the effectiveness of the arrangements in place to meet the health needs of pupils.
- Notifying the LA when a pupil is likely to be away from the school for a significant period of time due to their health needs.

4.3. Teachers and support staff are responsible for:

- Understanding confidentiality in respect of pupils' health needs.

- Designing lessons and activities in a way that allows those with additional health needs to participate fully and ensuring pupils are not excluded from activities that they wish to take part in without a clear evidence-based reason.
- Understanding their role in supporting pupils with additional health needs and ensuring they attend the required training.
- Ensuring they are aware of the needs of their pupils through the appropriate and lawful sharing of individual pupils' health needs.
- Ensuring they are aware of the signs, symptoms and triggers of common life-threatening medical conditions and know what to do in an emergency.
- Keeping parents informed of how their child's health needs are affecting them whilst in school.

4.4. Parents are expected to:

- Ensure the regular and punctual attendance of their child at the school where possible.
- Work in partnership with the school to ensure the best possible outcomes for their child.
- Notify the school of the reason for any of their child's absences without delay.
- Provide the school with sufficient and up-to-date information about their child's medical needs.
- Attend meetings to discuss how support for their child should be planned.

5. Managing absences

- 5.1. Parents are advised to contact the school on the first day their child is unable to attend due to illness.
- 5.2. Absences due to illness will be authorised unless the school has genuine cause for concern about the authenticity of the illness.
- 5.3. The school will provide support to pupils who are absent from school because of illness for a period of less than 15 school days by liaising with the pupil's parents to arrange schoolwork, as soon as the pupil is able to cope with it, or part-time education at school. The school will give due consideration to which aspects of the curriculum are prioritised in consultation with the pupil, their parents and relevant members of staff.
- 5.4. For periods of absence that are expected to last for 15 or more school days, either in one absence or over the course of a school year, the named member of staff with responsibility for pupils with additional health needs will notify the LA, who will take responsibility for the pupil and their education.
- 5.5. Where absences are anticipated or known in advance, the school will liaise with the LA to enable education provision to be provided from the start of the pupil's absence.

- 5.6. For hospital admissions, the appointed named member of staff will liaise with the LA regarding the programme that should be followed while the pupil is in hospital.
- 5.7. The LA will set up a personal education plan (PEP) for the pupil which will allow the school, the LA and the provider of the pupil's education to work together.
- 5.8. The school will monitor pupil attendance and mark registers to ensure it is clear whether a pupil is, or should be, receiving education other than at school.
- 5.9. The school will only remove a pupil who is unable to attend school because of additional health needs from the school roll where:
- The pupil has been certified by the school's medical officer as unlikely to be in a fit state of health to attend school, before ceasing to be of compulsory school age; and
 - Neither the pupil nor their parent has indicated to the school the intention to continue to attend the school, after ceasing to be of compulsory school age.
- 5.10. A pupil unable to attend school because of their health needs will not be removed from the school register without parental consent and certification from the school's medical officer, even if the LA has become responsible for the pupil's education.

6. Support for pupils

- 6.1. Where a pupil has a complex or long-term health issue, the school will discuss the pupil's needs and how these may be best met with the LA, relevant medical professionals, parents and, where appropriate, the pupil.
- 6.2. The LA expects the school to support pupils with additional health needs to attend full-time education wherever possible, or for the school to make reasonable adjustments to pupils' programmes of study where medical evidence supports the need for those adjustments.
- 6.3. Pupils admitted to hospital will receive education as determined appropriate by the medical professionals and hospital tuition team at the hospital concerned.
- 6.4. During a period of absence, the school will work with the provider of the pupil's education to establish and maintain regular communication and effective outcomes.
- 6.5. Whilst a pupil is away from school, the school will work with the LA to ensure the pupil can successfully remain in touch with their school using the following methods:
 - School newsletters
 - Emails
 - Invitations to school events
 - Cards or letters from peers and staff
- 6.6. Where appropriate, the school will provide the pupil's education provider with relevant information, curriculum materials and resources.
- 6.7. To help ensure a pupil with additional health needs is able to attend school following an extended period of absence, the following adaptations will be considered:
 - A personalised or part-time timetable, drafted in consultation with the named staff member
 - Access to additional support in school
 - Online access to the curriculum from home
 - Movement of lessons to more accessible rooms
 - Places to rest at school
 - Special exam arrangements to manage anxiety or fatigue

7. Reintegration

- 7.1. When a pupil is considered well enough to return to school, the school will develop a tailored reintegration plan in collaboration with the LA.
- 7.2. The school will work with the LA when reintegration into school is anticipated to plan for consistent provision during and after the period of education outside school.

7.3. As far as possible, the pupil will be able to access the curriculum and materials that they would have used in school.

7.4. If appropriate, the school nurse will be involved in the development of the pupil's reintegration plan and informed of the timeline of the plan by the appointed named member of staff, to ensure they can prepare to offer any appropriate support to the pupil.

7.5. The school will consider whether any reasonable adjustments need to be made to provide suitable access to the school and the curriculum for the pupil.

7.6. For longer absences, the reintegration plan will be developed near to the pupil's likely date of return, to avoid putting unnecessary pressure on an ill pupil or their parents in the early stages of their absence.

7.7. The school is aware that some pupils will need gradual reintegration over a long period of time and will always consult with the pupil, their parents and key staff about concerns, medical issues, timing and the preferred pace of return.

7.8. The reintegration plan will include:

- The date for planned reintegration, once known.
- Details of regular meetings to discuss reintegration.
- Details of the named member of staff who has responsibility for the pupil.
- Clearly stated responsibilities and the rights of all those involved.
- Details of social contacts, including the involvement of peers and mentors during the transition period.
- A programme of small goals leading up to reintegration.
- Follow-up procedures.

7.9. The school will ensure a welcoming environment is developed and encourage pupils and staff to be positive and proactive during the reintegration period.

7.10. Following reintegration, the school will support the LA in seeking feedback from the pupil regarding the effectiveness of the process.

8. Information sharing

~~It is essential that all applies to governors and volunteers.~~

Who Collects This Information

~~St Scholastica's is a "data-controller." This means that we are responsible for deciding how we hold and use personal information about you.~~

~~We are required under data protection legislation to notify you of the information contained in this privacy notice. This notice does not form part of any contract of~~

employment or other contract to provide services and we may update this notice at any time.

It is important that you read this notice, together with any other privacy notice we may provide on specific occasions when we are collecting or processing personal information about you, so that you are aware of how and why we are using such information.

Data Protection Principles

We will comply with the data protection principles when gathering and using personal information, as set out in our data protection policy.

The Categories of Information That We Collect, Process, Hold and Share

8.1. We may collect, store and use the following categories of personal information about pupils with additional health needs is kept up-to-date.~~you:—~~

8.2. To protect confidentiality, all~~Personal~~ information-sharing techniques, e.g. staff noticeboards, will be agreed with the pupil and their parent in advance~~contact details such as name, title, addresses, date of being used. birth, marital status, phone numbers~~

•8.3. All teachers, TAs, supply and support staff will be provided with access to relevant information, including high-risk health needs, first aiders and emergency procedures.~~personal email addresses;~~

8.4. Parents will be made aware of their own rights and responsibilities regarding confidentiality and information sharing. To help achieve this, the school will:

- Ensure this policy and other relevant policies are easily available and accessible.
- Provide the pupil and their parents with a copy of the policy on information sharing.
- Ask parents to sign a consent form which clearly details the organisations and individuals that their child's health information will be shared with and which methods of sharing will be used.
- Consider how friendship groups and peers may be able to assist pupils with additional health needs.

8.5. When a pupil is discharged from hospital or is returning from other education provision, the school will ensure the appropriate information is received to allow for a smooth return to the school. A named member of staff will liaise with the hospital or other tuition service as appropriate.

9. Record keeping

- ~~• Written~~Emergency contact information such as names, relationship, phone numbers and email addresses;
- ~~• Education details;~~

- ~~DBS details;~~
- ~~Employment details;~~
- ~~Information about business and pecuniary interests;~~
- ~~Information acquired as part of your application to become a governor;~~

9.1. Criminal records will be kept of all medicines administered to pupils.

9.2. Proper record keeping will protect both staff and pupils and provide evidence that agreed procedures have been followed.

10. Training

10.1. Staff will be trained in a timely manner to assist with a pupil's return to school.

10.2. Once a pupil's return date has been confirmed, staff will be provided with relevant training one week before the pupil's anticipated return.

10.3. Healthcare professionals should be involved in identifying and agreeing with the school the type and level of training required.

10.4. Training will be sufficient to ensure staff are confident in their ability to support pupils with additional health needs.

10.5. Parents of pupils with additional health needs may provide specific advice but will not be the sole trainer of staff.

11. Examinations and assessments

11.1. The named member of staff will liaise with the alternative provision provider over planning and assessment requirements where appropriate.

• 11.2. Relevant assessment information will be provided to the alternative provision provider if required. ~~as required by law to enable you to work with children;~~

- ~~Information about your use of our IT, communications and other systems, and other monitoring information;~~
- ~~Photographs;~~
- ~~Images captured by the School's CCTV system;~~
- ~~Your racial or ethnic origin, sex, religious or similar beliefs;~~
- ~~Details in references about you that we give to others.~~

~~Collecting Data For Test and Trace~~

In the current pandemic, we may need to store your data for test and trace purposes. This is in order for the school to engage with the test and trace process, make decisions on safety within the school and whether individuals are required to self-isolate or carry out a test. To do this we will be recording your name, contact number and date and time of arrival as well as time of departure.

To complement the above we may also ask for data that has not previously supplied. This will allow us to assess an individual's ability to attend/return to school and what measures may need to be put in place to allow for a safe return. We, additionally, may need to collect data about individuals that you reside with in order to factor in appropriate considerations for their wellbeing.

1.1.

All data collected by the school will be processed in accordance with our retention, destruction, data protection and data security policies. All data collected for test and trace purposes will be retained for 21 days in accordance with government guidelines.

1.1.

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12. Monitoring and review

12.1. This policy will be reviewed by the governing body on a two-yearly basis.

12.2. Any changes to the policy will be clearly communicated to all members of staff involved in supporting pupils with additional health needs, and to parents and pupils themselves.

The next scheduled review date for this policy is Spring 2027. legal bases for using your data in these circumstances will be for the reasons of substantial public interest and in the interests of public health. Dependant on circumstances the basis may be to assess the working capacity of an employee or to protect the vital interests of yourself or another person. We may need to share select data with others. This can be with the NHS and emergency services, public health, public authorities as well as other stakeholders. This will only be done where it is necessary and proportionate for us to do so.

How We Collect This Information

We may collect this information from you directly, from the DBS, other employees and professionals we may engage, automated monitoring of our websites and other technical systems such as our computer networks and connects, CCTV and access control systems, remote access systems, email and instant messaging systems, intranet and internet facilities.

A majority of the information that we collect from you is mandatory, however there is some information that you can choose whether or not to provide it to us. Whenever we seek to collect information from you, we make it clear whether you must provide this information (and if so, what the possible consequences are of not complying), or whether you have a choice.

How We Use Your Information

~~We will only use your personal information when the law allows us to. Most commonly, we will use your information in the following circumstances:—~~

- ~~• Where you have provided your consent;~~
- ~~• Where we need to perform the contract we have entered into with you;~~
- ~~• Where we need to comply with a legal obligation (such as health and safety legislation and under statutory codes of practice);~~
- ~~• Where it is needed in the public interest or for official purposes;~~
- ~~• Where it is necessary for our legitimate interests (or those of a third party) and your interests, rights and freedoms do not override those interests.~~

~~We need all the categories of information in the list above primarily to allow us to comply with our legal obligations and to enable us as a School to perform our public task. Please note that we may process your information without your knowledge or consent, where this is required or permitted by law.~~

~~The situations in which we will process your personal information are listed below:—~~

- ~~• To determine appointment and suitability as a governor;~~
- ~~• To deal with election of governors;~~
- ~~• To comply with safeguarding obligations;~~
- ~~• To provide details on our website or online databases about governors;~~
- ~~• To communicate with third parties and other stakeholders to the School;~~
- ~~• For business management and planning purposes (including accounting, budgetary and health and safety purposes;~~
- ~~• For financial purposes (such as expenses);~~
- ~~• To deal with any complaints/investigations as required;~~
- ~~• When you sit on a panel or committee, name and comments as well as decisions made;~~
- ~~• To send communications in your role as governor;~~
- ~~• For education, training and development requirements;~~
- ~~• In order to review governance of the School;~~
- ~~• In order to comply with any legal dispute or any legal obligations;~~
- ~~• In order to comply with regulatory requirements or health and safety obligations;~~
- ~~• To ensure system security, including preventing unauthorised access to our networks;~~
- ~~• To monitor use of our systems to ensure compliance with our IT processes;~~
- ~~• To receive advice from external advisors and consultants;~~
- ~~• To liaise with regulatory bodies (such as the DfE, DBS); and~~
- ~~• Dealing with termination of your appointment;~~

~~Some of the above grounds for processing will overlap and there may be several grounds which justify our use of your personal information.~~

~~If you fail to provide certain information when requested, we may be prevented from complying with our legal obligations (such as to ensure health and safety). Where you have provided us with consent to use your data, you may withdraw this consent at any time.~~

We will only use your personal information for the purposes for which we collected it, unless we reasonably consider that we need to use it for another reason and that reason is compatible with the original purpose. If we need to use your personal information for an unrelated purpose, we will notify you and we will explain the legal basis which allows us to do so.

How We Use Particularly Sensitive Information

Sensitive personal information (as defined under the UK GDPR as "special category data") require higher levels of protection and further justification for collecting, storing and using this type of personal information. We may process this data in the following circumstances:—

- In limited circumstances, with your explicit written consent;
- Where we need to carry out our legal obligations in line with our data protection policy;
- Where it is needed in the public interest, such as for equal opportunities monitoring (or in relation to our pension scheme);
- Where it is needed in relation to legal claims or where it is necessary to protect your interests (or someone else's interests) and you are not capable of giving your consent.

Criminal Convictions

We may only use information relating to criminal convictions where the law allows us to do so. This will usually be where it is necessary to carry out our legal obligations. We will only collect information about criminal convictions if it is appropriate given the nature of the role and where we are legally able to do so.

Where appropriate we will collect information about criminal convictions as part of the recruitment process or we may be notified of such information directly by you in the course of working for us.

Automated Decision Making

Automated decision making takes place when an electronic system uses personal information to make a decision without human intervention. We are allowed to use automated decision making in the following circumstances:—

- Where we have notified you of the decision and given you 21 days to request a reconsideration;
- Where it is necessary to perform the contract with you and appropriate measures are put in place to safeguard your rights; or
- In limited circumstances, with your explicit written consent and where appropriate measures are in place to safeguard your rights.

You will not be subject to decisions that will have a significant impact on you based solely on automated decision making, unless we have a lawful basis for doing so and we have notified you.

Sharing Data

We may need to share your data with third parties, including third party service providers where required by law, where it is necessary to administer the working relationship with you or where we have another legitimate interest in doing so. These include the following:—

- Government departments or agencies
- The Local Authority
- Suppliers and Service providers
- Professional advisors and consultants
- The Department for Education
- Law enforcement
- Support services;
- DBS.

Information will be provided to those agencies securely or anonymised where possible.

The recipient of the information will be bound by confidentiality obligations, we require them to respect the security of your data and to treat it in accordance with the law.

Retention Periods

Except as otherwise permitted or required by applicable law or regulation, the School only retains personal data for as long as necessary to fulfil the purposes they collected it for, as required to satisfy any legal, accounting or reporting obligations, or as necessary to resolve disputes.

To determine the appropriate retention period for personal data, the School considers the amount, nature, and sensitivity of personal data, the potential risk of harm from unauthorised use or disclosure of personal data, the purposes for processing the personal data, whether we can fulfil the purposes of processing by other means and any applicable legal requirements.

Once you are no longer a governor or volunteer of the school we will retain and securely destroy your personal information in accordance with our data retention policy.

Security

We have put in place measures to protect the security of your information (i.e. against it being accidentally lost, used or accessed in an unauthorised way). In addition, we limit access to your personal information to those employees, agents, contractors and other third parties who have a business need to know. Details of these measures are available in our Data Retention Policy

Third parties will only process your personal information on our instructions and where they have agreed to treat information confidentially and to keep it secure.

We have put in place procedures to deal with any suspected data security breach and will notify you and any applicable regulator of a suspected breach where we are legally required to do so.

Your Rights of Access, Correction, Erasure and Restriction

It is important that the personal information we hold about you is accurate and current. Please keep us informed if your personal information changes during your working relationship with us.

Under certain circumstances by law you have the right to:—

- Access your personal information (commonly known as a “subject access request”). This allows you to receive a copy of the personal information we hold about you and to check we are lawfully processing it. You will not have to pay a fee to access your personal information. However we may charge a reasonable fee if your request for access is clearly unfounded or excessive. Alternatively we may refuse to comply with the request in such circumstances.
- Correction of the personal information we hold about you. This enables you to have any inaccurate information we hold about you corrected.
- Erasure of your personal information. You can ask us to delete or remove personal data if there is no good reason for us continuing to process it.
- Restriction of processing your personal information. You can ask us to suspend processing personal information about you in certain circumstances, for example, if you want us to establish its accuracy before processing it.
- To object to processing in certain circumstances (for example for direct marketing purposes).
- To transfer your personal information to another party.

If you want to exercise any of the above rights, please contact Mrs Lobendhan, St Scholastica’s School, Kenninghall Road, E5 8BS. in writing.

We may need to request specific information from you to help us confirm your identity and ensure your right to access the information (or to exercise any of your other rights). This is another appropriate security measure to ensure that personal information is not disclosed to any person who has no right to receive it.

Right to Withdraw Consent

In the limited circumstances where you may have provided your consent to the collection, processing and transfer of your personal information for a specific purpose, you have the right to withdraw your consent for that specific processing at any time. To withdraw your consent, please contact Mrs Lobendhan. Once we have received notification that you have withdrawn your consent, we will no longer process your information for the purpose or purposes you originally agreed to, unless we have another legitimate basis for doing so in law.

How to Raise a Concern

We hope that Mrs Lobendhan can resolve any query you raise about our use of your information in the first instance.

We have appointed a data protection officer (DPO) to oversee compliance with data protection and this privacy notice. If you have any questions about how we handle your personal information which cannot be resolved by Mrs Lobendhan, then you can contact the DPO on the details below:—

Data Protection Officer: Judicium Consulting Limited

Address: 72 Cannon Street, London, EC4N 6AE

Email: dataservices@judicium.com

Web: www.judiciumeducation.co.uk

Lead Contact: Craig Stilwell

You have the right to make a complaint at any time to the Information Commissioner's Office, the UK supervisory authority for data protection issues.

Changes to This Privacy Notice

- 12.3. We reserve the right to update this privacy notice at any time, and we will provide you with a new privacy notice when we make any substantial updates. We may also notify you in other ways from time to time about the processing of your personal information.